

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 23, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SCHEDULING ORDER

On July 23, 2025, the parties filed a joint status report and proposed discovery and briefing schedule. In it, the parties indicate that they made initial disclosures on July 12, 2025 (Complainant) and July 15, 2025 (Respondent). The discovery schedule proposed by the parties completes discovery on December 5, 2025, within five months of service of Respondent's answer on July 8, 2025. The Commission's rules require completion of discovery within 150 days of service of the answer, and therefore, the parties' proposed schedule complies with the rule. (46 C.F.R. § 502.141(g)). The agreed-upon discovery schedule is below, with a minor amendment because October 25, 2025, falls on a Saturday.

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Under normal circumstances, cases such as these are resolved following briefing, and the parties have proposed a briefing schedule. I have set forth the agreed-upon briefing schedule below. Complainant requested that a hearing be held in the matter. (*See Verified Complaint*, at 25). Pursuant to 46 C.F.R. § 502.62(a)(5), "[t]he presiding officer will determine whether an oral hearing is necessary." At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing – accordingly, the Complainant's request is **DENIED WITHOUT PREJUDICE**.

The parties are hereby **ORDERED** to follow this schedule:

August 15, 2025	Initial discovery requests due
September 15, 2025	Responses to initial discovery requests due
September 23, 2025	Depositions (if any) begin
October 27, 2025	Deadline for submission of additional discovery requests

December 5, 2025	Close of discovery and completion of depositions (if any)
December 26, 2025	Joint status report due
January 26, 2026	Complainant's opening brief, proposed findings of fact, and appendix due
February 26, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
March 12, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information.

Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C.
Ambrow Jr -S

Digitally signed by Richard C.
Ambrow Jr -S
Date: 2025.07.23 08:51:56
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Richard Ambrow
Administrative Law Judge